

Rajendra Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 February 2020 · Writ-C No. 4690 of 2020 · **Writ disposed; Clause 6.5 representation directed; recovery stayed two months.**

HEADNOTE

A challenge to an electricity recovery citation, including by a person who claims not to be a consumer, is treated as a dispute as to the amount of the bill and is to be raised before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court disposed of the writ directing a detailed representation, to be decided in accordance with law within two months, and stayed coercive action on the citation dated 14 October 2019 for that period.

FACTUAL SUMMARY

Rajendra Kumar petitioned the High Court claiming he was not even a consumer of electricity under the Electricity Act, yet a recovery citation for Rs.70,030 had been issued against him on 14 October 2019. Counsel for the respondents submitted that the dispute concerned the amount of the bill and could be dealt with by the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court did not try the recovery on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill / Clause 6.5 representation

HOLDING

A dispute as to the amount of an electricity bill, including one that has gone to a recovery citation, is to be raised by a detailed representation to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, who shall consider it and pass an appropriate order in accordance with law; the writ court will not decide the bill on merits and may stay coercive recovery pending that consideration. ¶ 1

PRINCIPLE TAGS

6.5-representation-as-appropriate-remedy The Court directed the petitioner to file a detailed representation before the Executive Engineer under Clause 6.5, to be decided in accordance with law within two months. ¶ 1

clause-6.5-alternate-remedy The writ was disposed of without deciding the recovery on merits, relegating the petitioner to the Clause 6.5 forum while staying coercive action for two months. ¶ 1

billing-dispute-question-of-fact-executive-engineer-clause-6.5 The Court accepted the licensee's submission that the controversy was as to the amount of the bill and therefore lay with the Executive Engineer under Clause 6.5. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS A CONSUMER OF ELECTRICITY UNDER THE ELECTRICITY ACT

Asserted by the petitioner; not tried. ¶ 1

NOT DECIDED — MERITS OF THE RECOVERY CITATION OF RS.70,030 DATED 14 OCTOBER 2019

Relegated to the Executive Engineer under Clause 6.5. ¶ 1

